Turnage, Kevin D. (IHS/PHX)

From: Ward Lund, Debra L. (IHS/PHX)
Sent: Thursday, March 9, 2023 4:36 PM
To: Turnage, Kevin D. (IHS/PHX)
Cc: Pingel, Todd (IHS/PHX)
Subject: RE: Grievance and Complaint

Good Afternoon,

I agree that under 7-5.5 B. (3) of the Administrative Grievance System for performance appraisal grievances, the official who gave final approval to the summary rating is the Stage 1 Official. However, as you have been informed, and based on your allegation, I have contacted the EEO office to investigate your concerns raised in your email of March 3, 2023. Therefore, the reviewing official is unavailable to address your administrative grievance as contemplated under 7-5-.5 B. (3).

The Administrative Grievance System procedure does not specifically address who would be the Stage 1 Official in the absence of the availability of the official who gave final approval to the summary rating. Absent a provision providing guidance on this specific fact pattern, I am defaulting to the procedure found in 7-5-.5 B. (1) of the Administrative Grievance System that states, "the Stage 1 Official is the first official within the organization who has authority over the matter being grieved. This is the official who made the decision or took the action about which the employee is dissatisfied."

You did not provide a cite to any authority for me to consider that supports your argument that the Stage 1 Official should be another member of leadership which is a leadership level above the PMAP rating official. Additionally, the provisions of the Administrative Grievance System specifically make references that the Stage 1 Official is an official who was involved in the decision about which the employee is dissatisfied.

Mr. Jason White will be the Stage 1 Official to address your administrative grievance submitted to management on March 3, 2023.

Thank you,

Deb

From: Ward Lund, Debra L. (IHS/PHX)
Sent: Wednesday, March 8, 2023 6:04 PM
To: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Cc: Pingel, Todd (IHS/PHX) <Todd.Pingel@ihs.gov>
Subject: RE: Grievance and Complaint

Good Evening,

I am seeking clarification about your concern and will provide a response as soon as I am able.

Thank you,

Deb

From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Wednesday, March 8, 2023 11:39 AM
To: Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov>
Cc: Patton, George W (IHS/PHX) <George.Patton@ihs.gov>; Homer, Michelle (IHS/PHX) <michelle.homer@ihs.gov>; Pingel, Todd (IHS/PHX) <Todd.Pingel@ihs.gov>
Subject: RE: Grievance and Complaint

Thank you for including Mr. Pingel because I would like clarification as to why the rating official is being listed as the Stage 1 when IHM Part 7 Chapter 5.5 B(3) states Performance Appraisal Grievances. For performance appraisal grievances, the official who gave final approval to the summary rating is the Stage 1 Official. The reviewing official would be the stage 1 since that individual reviewed and gave final approval of the rating. Therefore, since Ms. Lee cannot complete the review it should go to another member of leadership that would be an equal to her. Especially since OPM recognizes that asking a rating official to admit they are wrong about their initial assessment is flawed and biased. I await a response.

V/r

Hon. Kevin D. Turnage MSN Ed. RN, AMB-BC, NHDP- BC, NPD-BC
SCN for PCMC Employee Health and Behavioral Health

From: Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov>
Sent: Monday, March 6, 2023 4:40 PM
To: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Cc: Patton, George W (IHS/PHX) <George.Patton@ihs.gov>; Homer, Michelle (IHS/PHX) <michelle.homer@ihs.gov>; Pingel, Todd (IHS/PHX) <Todd.Pingel@ihs.gov>
Subject: RE: Grievance and Complaint

Good Afternoon Mr. Turnage,

I have asked Mr. Patton to initiate a request for a contract EEO investigator to investigate your allegation of harassment, pursuant to the IHS Prevention of Workplace Harassment Policy. I anticipate that an investigator will be in direct contact with you as soon as the contract is awarded. If there are any unforeseen delays I will let you know.

In regard to the grievance to your Performance Management Appraisal, we are actively reviewing the concerns you have raised and we will adhere to the administrative investigation timeframes for a reply. Mr. Jason White is the rating official for your 2022 PMAP, so he will serve as the Step 1 Responding Official on behalf of management; this response will include a review of the total rating to ensure that the administrative element is scored and considered. I have consulted with Todd Pingel, ERLR Specialist, on this matter so I have added him to this email.

Thank you,

Deb

Debra Ward Lund, RN-BC, MSN
Chief Executive Officer (acting)
Phoenix Indian Medical Center
Indian Health Service
602-574-5244

From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Monday, March 6, 2023 11:11 AM
To: Ward Lund, Debra L. (IHS/PHX) <Debra.Wardlund@ihs.gov>
Cc: Patton, George W (IHS/PHX) <George.Patton@ihs.gov>; Homer, Michelle (IHS/PHX) <michelle.homer@ihs.gov>
Subject: Grievance and Complaint

Please see attached . As it addresses several issues including the grievance and EEOC complaints.

Hon. Kevin D. Turnage RN, MSN Ed. AMB-BC, NHDP- BC, NPD-BC
Supervisory Clinical Nurse PCMC and Employee Health , COR II,
Phoenix Indian Medical Center
602-263-1574
Cell: 602-647-9126

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